

**IN THE UNITED STATES BANKRUPTCY COURT  
FOR THE DISTRICT OF DELAWARE**

|                                                                                                                    |                                                                         |                                                                                                           |
|--------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------|
| <p><i>In re</i></p> <p>FTX TRADING LTD., <i>et al.</i>,<sup>1</sup></p> <p style="text-align: right;">Debtors.</p> | <p>⋮</p> <p>⋮</p> <p>⋮</p> <p>⋮</p> <p>⋮</p> <p>⋮</p> <p>⋮</p> <p>⋮</p> | <p>Chapter 11</p> <p>Case No. 22-11068 (JTD)</p> <p>(Jointly Administered)</p> <p>Re: D.I. 1643, 1846</p> |
|--------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------|

**STATEMENT OF ISSUES TO BE PRESENTED ON APPEAL**

Appellant Andrew R. Vara, the United States Trustee for Region 3 (the “U.S. Trustee”), pursuant to Fed. R. Bankr. P. 8009(a)(1), submits this statement of the issues to be presented on appeal with respect to this Court’s June 15, 2023 *Order Authorizing the Movants to Redact or Withhold Certain Confidential Information of Customers and Personal Information of Individuals* [D.I. 1643]:

**District Court Case No.**

1:23-cv-00737 (CFC)  
BAP 23-36

**Appellant**

Andrew R. Vara, solely in his capacity as  
United States Trustee for Region 3

**Appellees**

FTX Trading Ltd., *et al.*

Official Committee of Unsecured Creditors

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<sup>1</sup> The last four digits of FTX Trading Ltd.’s and Alameda Research LLC’s tax identification numbers are 3288 and 4063, respectively. Due to the large number of debtor entities in these chapter 11 cases, a complete list of the Debtors and the last four digits of their federal tax identification numbers is not provided herein. A complete list of such information may be obtained on the website of the Debtors’ claims and noticing agent at <https://cases.ra.kroll.com/FTX>.

The following issues will be presented on appeal:

- (1) Did the bankruptcy court err in authorizing under 11 U.S.C. § 107(b) the redaction of the names of all customers of the debtors from all court filings in which disclosure would indicate the status of such person or entity as a customer?
- (2) Did the bankruptcy court err in authorizing under 11 U.S.C. § 107(c)(1) the redaction of the names of all customers who are natural persons from all court filings in which disclosure would indicate the status of such person as a customer?

Dated: July 20, 2023  
Wilmington, Delaware

Respectfully submitted,

**ANDREW R. VARA**  
**UNITED STATES TRUSTEE,**  
**REGIONS 3 and 9**

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## CERTIFICATE OF SERVICE

I, Juliet Sarkessian, hereby certify that on July 20, 2023, I served a copy of the foregoing document through the CM/ECF notification system on the participants in the case that are registered CM/ECF users, with courtesy copies upon the following counsel via e-mail:

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